

TENTATIVE RULING(S) FOR August 14, 2026

Department S37 – Judge Winston Keh

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2506895

Tinoco v. Lyft

TENTATIVE RULING(S):

Before the Court is Defendant Lyft's motion to compel Plaintiff to arbitrate her claims and stay the proceedings as to Lyft. Plaintiff opposes. Lyft replies.

Legal Standard

California law favors enforcement of valid arbitration agreements, and doubts are resolved against the party opposing arbitration. The Federal Arbitration Act likewise authorizes enforcement of arbitration clauses, absent legal or equitable grounds for revocation of the contract. When a petition to compel arbitration is filed with prima facie evidence of a written arbitration agreement, the Court must first determine whether an agreement exists. The moving

party bears the burden of proving the existence of the arbitration agreement by a preponderance of the evidence. If the opposing party raises a defense to enforcement, that party bears the burden of producing evidence establishing the defense by a preponderance of the evidence. A stay may be entered pending arbitration.

Analysis

1. Does the FAA Apply?

Yes. The parties' arbitration agreement expressly provides it is governed by the Federal Arbitration Act, and Plaintiff does not argue otherwise. Accordingly, the FAA applies.

2. Was a Contract to Arbitrate Formed?

Yes. Under California contract principles, the Court first determines whether the parties entered into a binding agreement to arbitrate, and the party seeking arbitration bears the burden of proving the arbitration agreement by a preponderance of the evidence. Lyft has submitted a copy of the Lyft Terms of Service containing the arbitration provision in effect at the time of the accident. Lyft also submits evidence that Plaintiff electronically agreed to the Terms of Service. Once Lyft produced the agreement, Plaintiff was required to come forward with evidence creating a factual dispute as to the agreement's existence or authenticity (for example, by disputing authenticity or offer/acceptance in a meaningful evidentiary way).

Plaintiff does not provide evidence disputing that she agreed to the Terms. Instead, Plaintiff argues Lyft failed to prove Plaintiff received reasonably conspicuous notice of the arbitration clause. On this record, Plaintiff has not met her evidentiary burden to create a factual dispute material to contract formation or the existence of the arbitration agreement. Lyft has therefore shown, by a preponderance of the evidence, that a contract was formed.

3. Who Decides Arbitrability and Enforceability?

Generally, courts decide enforceability and arbitrability issues, but the statutes and controlling authority recognize that the parties may agree who decides arbitrability. Where there is a clear and unmistakable delegation, challenges directed to the arbitration agreement as a whole are for the arbitrator; however, a party may challenge the delegation clause itself using generally applicable contract defenses, but the challenge must be specific to the delegation provision.

Here, the arbitration agreement includes a delegation clause providing that disputes concerning arbitrability—including scope, applicability, enforceability, revocability, or validity of the arbitration agreement—shall be decided by the arbitrator. That is a clear delegation of arbitrability/enforceability questions to the arbitrator.

Plaintiff's opposition does not establish a specific contract defense to the delegation clause. Plaintiff's general assertion that delegation clauses are inherently unconscionable because arbitrators may decide their own authority is unpersuasive and does not address the delegation clause as required by the governing standard. Plaintiff has not shown that the delegation provision in this agreement is specifically unconscionable or otherwise invalid under a defense targeted at the delegation clause.

Accordingly, the Court will enforce the delegation clause, and the arbitrator will decide the remaining issues raised by Plaintiff—including any unconscionability challenges to the arbitration provision, public policy arguments, and Code of Civil Procedure section 1281.2 issues.

Conclusion/Order

For the foregoing reasons, the Court GRANTS Defendant Lyft's motion to compel arbitration in its entirety. The Court further STAYS the proceedings against Lyft pending completion of arbitration. This ruling does not apply to Defendants Melvin Espinoza Torrez and Richard Paul Guinan, Jr. as they do not appear to be parties to the arbitration agreement.